

Authority for Personal Data
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 The Minister of Education, Culture and Science
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Date

December 12, 2023

Our reference

z2023-02920

Your letter dated

July 4, 2023

Contact person

Your reference

39048289

Subject

Advice AMvB monitor social safety for students

Dear Mr. Dijkgraaf,

In your letter dated July 4, 2023, the Authority for Personal Data (AP) was consulted based on the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR), regarding the draft Decision to amend the Decision on funding WPO BES 2022, the Establishment Decision WPO, the Educational Decision WEC, and the Implementation Decision WVO 2020 containing rules regarding an expansion of the monitoring obligation in primary education (hereinafter: the draft).

Assessment of the personal data aspects of the draft gives the AP reason to make some comments.

Scope of the draft

Since 2015, schools have been required to implement safety policies and monitor safety in schools.¹ The monitoring obligation aims to provide schools with insight into students' perceptions of safety at school. In practice, it has been shown that not all schools have sufficient visibility on this.² The draft aims to change this and proposes further regulations for the implementation and design of the monitor. This should lead to a more accurate picture of the safety experience so that a school has better information for the evaluation and, where necessary, the adjustment of the safety policy.³

1 Act on Safety at School, State Gazette 2015, 238.

2 See Explanatory Memorandum to the draft, p. 4.

3 See Explanatory Memorandum to the draft, p. 4.

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The draft provides for an expansion of the monitoring obligation. Currently, only a representative share of the students needs to be involved in the monitor. The draft stipulates that every student⁴ who is reasonably able must be given the opportunity to participate in the monitor. Thus, monitoring has significance for all students.⁵ Additionally, the areas of focus for the monitoring obligation will be expanded. Currently, students are only asked about perceived safety, actual safety, and well-being. The draft mandates that students are also asked about experiences with abuse, sexual harassment

and sexual offenses, discrimination, and bullying. This expansion aims to gain insight into the causes of any feelings of insecurity.⁶ Finally, schools must categorize the results of the monitor by establishment and school year and send them to the education inspectorate, provided that this is done anonymously.

Advice

Responsibility for ensuring anonymity

The draft acknowledges that anonymizing the results of the monitor categorized by establishment and school year is not always possible. If the anonymization is not properly executed by the competent authority, it may lead to sensitive and possibly special personal data being traceable from the results of the monitor for the education inspectorate. The explanatory notes to the draft state that the results of the monitor will only be further broken down by school year and type of education if the numbers allow this and anonymity can be guaranteed.⁷ However, aggregation is not without risk. Only when the data is aggregated in such a way that individual events are no longer identifiable can the resulting dataset be considered anonymous.⁸ These can be complex exercises in practice. This complexity is further exacerbated by the wording of the relevant provisions: "The competent authority categorizes the results of the monitor by establishment and school year, insofar as the anonymity of students can be guaranteed." This wording leaves uncertainty as to whether, in cases where anonymity cannot be guaranteed, a breakdown by either establishment or school year is possible, or whether no categorization should take place at all.

The responsibility - and thus the risk - for properly aggregating the results of the monitor and thereby ensuring the anonymity of the students is placed by the draft on the competent authority. The AP is of the opinion that the legislator should provide clarity in advance to the competent authority regarding when the results of the monitor have been sufficiently aggregated and should not place that responsibility on the competent authority.

The AP advises that the draft or delegated legislation should include precise criteria for sufficient aggregation.

Advising Caribbean Netherlands

4 For primary education, a further condition is that it concerns every student from the fifth grade.

5 See Explanatory Memorandum to the draft, p. 5.

6 See Explanatory Memorandum to the draft, p. 5.

7 Explanatory Memorandum to the draft, p. 8.

8 See p. 10 WP 216, advice 5/2014 on anonymization techniques, approved on April 10, 2014, by the Article 29 Data Protection Working Party; the predecessor of the European Data Protection Board P. 10 advice WP 216 on anonymization techniques.

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The draft also contains amendments relating to BES legislation (Caribbean Netherlands). It is not for the AP to advise on the draft insofar as it concerns the Caribbean Netherlands. The AP is considering submitting the draft for advice to the Committee for the Supervision of Personal Data Protection BES, should this not have already occurred.

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

Disclosure

This advice will be published on the AP's website within two weeks.

Yours sincerely,
Authority for Personal Data,
Aleid Wolfsen
Chairman